

GOVERNMENT OF MAHARASHTRA

Department of Revenue and Forest — District Collectorate, Pune

ORIGINAL GRANT CERTIFICATE / 7/12 EXTRACT

Extract No: REVENUE/PUNE/7-12/KHD/449-2/1986 | Village: Khadakwasla

7/12 EXTRACT (SATBARA UTARA):

Gat No. / Survey No.	449/2
Village	Khadakwasla
Taluka	Haveli
District	Pune
Total Area	2 Hectares 18 Ares (approx. 5.4 Acres)
Land Type	Jirayat (Rainfed Dry)
Water Source	Nil — Rainfed
Occupant (Khaatedar)	Sri Pandurang Vitthal Deshpande
Nature of Occupancy	Patta Holder — Original Government Grant
Grant Date	12/08/1986 (Govt. Land Grant to Landless Farmer)
Patta No.	PATTA/PUNE/HVL/1986/00312
Annual Land Revenue	Rs. 180/- per annum
Encumbrance	Nil as on date

CROP DETAILS (Kharif 1986):

Jowar — 1 Hectare 40 Ares | Bajra — 0 Hectares 78 Ares | Fallow — Nil

Issued by: Talathi, Khadakwasla, Haveli Taluka. Circle Officer countersigned.

GOVERNMENT OF MAHARASHTRA

Office of the Tahsildar, Haveli Taluka, Pune District

LEGAL HEIR CERTIFICATE

Certificate No: TAHSIL/HVL/LH/2009/0144 | Date: 10/06/2009

This is to certify that the following persons are the legal heirs of:

Name of Deceased	Sri Pandurang Vitthal Deshpande
S/o	Late Vitthal Deshpande
Date of Death	22/03/2009
Place of Death	Khadakwasla Village, Haveli
Last Residence	Gat No. 449/2 Farm House, Khadakwasla

LEGAL HEIRS — FIRST FAMILY:

S. No.	Name	Relationship	Age	Address
1	Smt. Laxmibai Deshpande	Wife (First)	58 yrs	Khadakwasla Village
2	Sri Suresh Deshpande	Son (Elder)	35 yrs	Flat 4, Swargate, Pune-42
3	Smt. Meena Kulkarni	Daughter	32 yrs	Hadapsar, Pune-28

Note: This certificate is issued based on village records, ration card and death certificate submitted. Two other claimants (Arun Deshpande and Kavita Patil) have filed an objection claiming to be children of a second marriage. The matter is sub-judice. This certificate reflects only the verified first-family heirs.

Issued by: Tahsildar, Haveli. Seal: (Office Seal — Tahsildar Haveli, Pune District)

GOVERNMENT OF MAHARASHTRA — REVENUE DEPARTMENT

Office of the Talathi, Khadakwasla, Haveli Taluka

MUTATION ENTRY — FERFAR REGISTER

Mutation No: MUT/HVL/2009/0892 | Filed: 15/06/2009

REASON FOR MUTATION:

Death of occupant Sri Pandurang Vitthal Deshpande (deceased 22/03/2009). Application filed by legal heirs — Smt. Laxmibai Deshpande, Sri Suresh Deshpande, and Smt. Meena Kulkarni — for entry of their names as joint khaatedars in Gat No. 449/2.

NOTICE AND OBJECTION DETAILS:

Notice Issued	20/06/2009 — Published in village & sent to all known parties
Objection 1	Sri Arun Deshpande — claims to be son of Pandurang from second wife Smt. Savitribai. Objection filed 05/07/2009.
Objection 2	Smt. Kavita Patil — claims to be daughter of Pandurang from second wife. Objection filed 07/07/2009.
Talathi Action	Mutation kept in abeyance pending resolution of objections.
Status	PENDING — Referred to Sub-Divisional Officer, Haveli on 15/07/2009
SDO Order	SDO directed parties to approach civil court. Mutation STAYED pending court order. Date: 20/08/2009

CURRENT STATUS: MUTATION SUSPENDED — CIVIL COURT LITIGATION PENDING.

IN THE COURT OF THE CIVIL JUDGE (SENIOR DIVISION), PUNE

Regular Civil Suit No. 824/2009

PLAINT — SUIT FOR DECLARATION AND PARTITION

PLAINTIFFS:

- Sri Arun Vitthal Deshpande, S/o Late Pandurang Deshpande (alleged — second wife's son), aged 29 yrs, Deccan Gymkhana, Pune-4.
- Smt. Kavita Ashok Patil (nee Deshpande), D/o Late Pandurang Deshpande (alleged), aged 26 yrs, Aundh, Pune-7.

DEFENDANTS:

- Smt. Laxmibai Pandurang Deshpande.
- Sri Suresh Pandurang Deshpande.
- Smt. Meena Ramesh Kulkarni.

AVERMENTS:

- That the late Pandurang Vitthal Deshpande contracted a second marriage with Smt. Savitribai in 1978 (prior to the death of first wife), and the Plaintiffs are the children of the said second marriage.
- That the Plaintiffs are entitled to an equal share in all properties including Gat No. 449/2, Khadakwasla, being Class-I legal heirs.
- That the Legal Heir Certificate No. TAHSIL/HVL/LH/2009/0144 is incomplete and wrongly excludes the Plaintiffs.
- That the Defendants are attempting to fraudulently mutate the entire land in their names, depriving the Plaintiffs of their lawful share.

RELIEFS:

- Declaration that Plaintiffs are legal heirs of Late Pandurang Deshpande with 2/5 share each in Gat No. 449/2.
- Partition of Gat No. 449/2 into 5 equal shares (1 share each to 5 legal heirs).
- Injunction restraining Defendants from mutating or alienating the property.
- Costs.

Filed: 01/09/2009 | Advocate: Sri P.V. Naik, Advocate, Pune.

IN THE COURT OF THE CIVIL JUDGE (SENIOR DIVISION), PUNE

R.C.S. No. 824/2009 — Order on Interim Application No. 210/2009

ORDER — TEMPORARY INJUNCTION

Date: 18/09/2009 | Exh. No. 12 in R.C.S. 824/2009

Date: 18/09/2009

Present: Hon'ble Sri Civil Judge (Sr. Dn.), Pune City.

Having heard the learned counsel for both parties and perused the plaint, interim application, and affidavits:

ORDER:

Prima facie, the Plaintiffs have shown that there is a triable issue regarding their status as legal heirs. In the interest of justice and to maintain status quo:

The Defendants, their agents, and representatives are hereby **RESTRAINED** from:

- Mutating or effecting any change in the revenue records of Gat No. 449/2, Khadakwasla, Haveli Taluka;
- Selling, gifting, transferring, mortgaging, or creating any third-party interest in the said property;
- Interfering with the peaceful possession of the property or making any construction thereon;

until further orders of this Court.

The Talathi and Sub-Divisional Officer, Haveli are directed to take note of this order and not approve any mutation in respect of Gat No. 449/2 without leave of this Court.

Order No.	IA No. 210/2009 in RCS 824/2009
Date of Order	18/09/2009
Operative Status	ACTIVE — Not vacated as on date of this extract
Effect on Mutation	Mutation MUT/HVL/2009/0892 — STAYED by court order

Sd/- Civil Judge (Sr. Dn.), Pune 18/09/2009

GOVERNMENT FORENSIC SCIENCE LABORATORY, PUNE

Forensic Report — DNA Kinship Analysis

DNA KINSHIP ANALYSIS REPORT

Report No: GFSL/PUNE/DNA/2013/0087 | Court Reference: RCS 824/2009

This report is submitted pursuant to the order dated 12/03/2013 of the Civil Judge (Sr. Dn.), Pune in R.C.S. No. 824/2009, directing DNA analysis to establish biological relationship between the Plaintiffs and the deceased Sri Pandurang Vitthal Deshpande.

SAMPLES ANALYSED:

S. L.	Person	Relationship Claimed	Sample Type	Sample ID
1	Sri Arun Deshpande	Son of Pandurang (Pl. 1)	Buccal Swab	GFL-BS-2013-441
2	Smt. Kavita Patil	Daughter of Pandurang (Pl. 2)	Buccal Swab	GFL-BS-2013-442
3	Sri Suresh Deshpande	Son of Pandurang (Def. 2)	Buccal Swab	GFL-BS-2013-443
4	Exhumed Bone Sample	Deceased Pandurang	Bone Fragment	GFL-BS-2013-444

FINDINGS:

Plaintiff 1 (Arun Deshpande): DNA analysis shows a probability of paternity of **99.87%** (CPI = 762.4), confirming biological relationship with the deceased Sri Pandurang Deshpande.

Plaintiff 2 (Kavita Patil): DNA analysis shows a probability of paternity of **99.91%** (CPI = 1,104.2), confirming biological relationship with the deceased.

CONCLUSION: Both Plaintiffs are confirmed biological children of Late Sri Pandurang Vitthal Deshpande.

Submitted by: Dr. Anjali Mhatre, Senior Scientific Officer, GFSL Pune. Date: 20/06/2013.

IN THE COURT OF THE CIVIL JUDGE (SENIOR DIVISION), PUNE

R.C.S. No. 824/2009 — Judgment and Preliminary Decree

JUDGMENT AND PRELIMINARY DECREE FOR PARTITION

Date: 14/11/2019

Present: Hon'ble Sri Civil Judge (Sr. Dn.), Pune — Smt. Rekha S. Joshi.

JUDGMENT SUMMARY:

After 10 years of trial, examination of oral and documentary evidence including DNA analysis, this Court finds:

- That the DNA evidence (GFSL Report 2013/0087) conclusively establishes that the Plaintiffs Arun Deshpande and Kavita Patil are the biological children of Late Pandurang Deshpande.
- That the second marriage of Pandurang Deshpande with Smt. Savitribai is proved by oral evidence and the birth certificates of the Plaintiffs.
- All five heirs (2 from Plaintiff side + 3 from Defendant side) are entitled to equal 1/5th share each in Gat No. 449/2.

PRELIMINARY DECREE:

It is hereby decreed that **Gat No. 449/2, Khadakwasla, Haveli Taluka, Pune** (Area: 2 Ha 18 Ares) be partitioned into **FIVE EQUAL SHARES** as follows:

Shareholder	Relationship	Share	Area (approx.)	Status
Smt. Laxmibai Deshpande	Wife (1st family)	1/5	0 Ha 43 Ares	Confirmed
Sri Suresh Deshpande	Son (1st family)	1/5	0 Ha 43 Ares	Confirmed
Smt. Meena Kulkarni	Daughter (1st family)	1/5	0 Ha 43 Ares	Confirmed
Sri Arun Deshpande	Son (2nd family)	1/5	0 Ha 43 Ares	Confirmed
Smt. Kavita Patil	Daughter (2nd family)	1/5	0 Ha 44 Ares	Confirmed

A Final Decree Commissioner is appointed to demarcate the 5 shares physically. The temporary injunction IA 210/2009 stands modified — parties may proceed for mutation of their respective shares upon Final Decree.

Date: 14/11/2019 | Sd/- Civil Judge (Sr. Dn.), Pune

GOVERNMENT OF MAHARASHTRA — REVENUE DEPARTMENT

Office of the Talathi, Khadakwasla, Haveli Taluka

MUTATION ENTRY — POST DECREE PARTITION

Mutation No: MUT/HVL/2021/0344 | For Share: Sri Suresh Deshpande

Original Gat No.	449/2 (Area: 2 Ha 18 Ares)
Basis of Mutation	Preliminary Decree dated 14/11/2019 in RCS 824/2009 + Final Decree 12/01/2021
New Sub-division	Gat No. 449/2A — Allotted to Sri Suresh Deshpande (1/5 share = 0 Ha 43 Ares)
Mutation Filed by	Sri Suresh Deshpande — 20/02/2021
Mutation Approved by	Sub-Divisional Officer, Haveli — 15/04/2021
RTC Updated for	Sri Suresh Deshpande — Gat No. 449/2A
Remaining Shares	Gat No. 449/2B, 2C, 2D, 2E — mutations pending for other 4 heirs
Overall Mutation Status	PARTIAL — 1 of 5 shares mutated. 4 shares still pending.

NOTE: Arun Deshpande and Kavita Patil have not yet filed mutation applications for their shares. Dispute continues regarding physical demarcation of the remaining 4 portions.

LANDLEDGER — PARCEL HISTORY SUMMARY SHEET

Auto-generated document summary for Gat No. 449/2, Khadakwasla, Haveli, Pune

COMPLETE PARCEL TIMELINE

#	Date	Event	Ref.	Parties	Impact	Status
1	12/08/1986	Govt Grant / Patta	PATTA/1986/00312	Pandurang Deshpande	Low	Clean
2	22/03/2009	Death of Owner	Death Cert	Pandurang Deshpande	High	Succession
3	10/06/2009	Legal Heir Cert	TAHSIL/HVL/LH/2009	Laxmibai, Suresh, Meena	Medium	Contested
4	15/06/2009	Mutation Filed	MUT/HVL/2009/0892	1st family heirs	Medium	Suspended
5	01/09/2009	Civil Suit Filed	RCS 824/2009	Arun & Kavita vs Def.	High	Active-2009
6	18/09/2009	Stay Order	IA 210/2009	Court Order	Blocked	Active 10 yrs
7	20/06/2013	DNA Report	GFSL/2013/0087	Plaintiffs confirmed	High	Key Evidence
8	14/11/2019	Preliminary Decree	RCS 824/2009	5 heirs — 1/5 each	High	Partial Resolved
9	15/04/2021	Mutation (1 share)	MUT/HVL/2021/0344	Suresh Deshpande	Medium	1/5 Done
10	2024	Remaining 4 shares	Gat 449/2B-2E	4 heirs	High	PENDING

RISK ASSESSMENT:

Risk Score	68 / 100 — HIGH
Litigation	Original suit disposed but partition incomplete
Mutation Status	PARTIAL — 4 of 5 shares not yet mutated
Deed / RTC Conflict	Multiple rightful owners — RTC not updated for 4 of 5 heirs
Encumbrance	Injunction IA 210/2009 — modified but record not clear
Physical Demarcation	Pending for Gat 449/2B, 2C, 2D, 2E
Tax Status	Overdue — not updated post-partition
Recommendation	DO NOT TRANSACT on any portion until all 5 mutations complete and demarcation done